SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (5 JUDGES)

Writ Petition (Civil) No. 416 of 2012 **CNR: SCIN010004162012**

Date: 06 May, 2014 *Citation: (2014) 8 SCC 1*

CORAM: Hon'ble R.M. Lodha, C.J., A.K. Patnaik, S.J. Mukhopadhaya, Dipak Misra, F.M

Petitioner: Pramati Educational & Cultural Trust & Others

- VERSUS -

Respondent: Union of India & Others

DOMAIN: RIGHT TO EDUCATION & CONSTITUTIONAL VALIDITY **STATUS: Good Law (Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Article 21A does not abrogate the basic structure. The 2009 Act applies to private non-minority unaided schools, but its application to minority schools protected under Article 30(1) would destroy their constitutional character.

STATUTES APPLIED: Section 12(1)(c) RTE Act, Article 21A, Article 15(5), Article 30(1)

DISPOSITION: RTE ACT UPHELD; MINORITY INSTITUTIONS EXEMPTED

EXECUTIVE RATIO SUMMARY:

Five-judge Constitution Bench upheld the validity of Article 21A and the 25% quota in private unaided schools under Section 12(1)(c) of the RTE Act, but held that the RTE Act does not apply to minority educational institutions protected under Article 30(1).

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

SECURE RECORD ID: 44444444-0006-4000-8000-000000000006 | CANONICAL: SC_2014_WP_Civil_No_416_of_2012_44440006.pdf

TAMPER-PROOF RECORD AUTHENTICATED VIA MERKLE AUDIT CHAIN